

[Recent Reports](#)[Support HRW](#)[World Report 1999](#)[Order Online](#)

GEORGIA

Human Rights Developments

Georgia's already poor human rights record deteriorated in advance of October 31 parliamentary elections. The elections will determine whether President Eduard Shevardnadze's ruling Citizens Union party will retain control over the legislature in the face of popular discontent over the government's failure to raise living standards, pay wages and pensions on time, and curb rampant corruption.

Multilateral lending institutions disbursed substantial credits to Georgia in June and July after protracted discussions regarding the government's unwillingness to collect taxes, especially from large taxpayers.

There was no substantial improvement in the Ministry of Internal Affairs' dismal record in the treatment of detainees, and the ministry actively blocked reforms in a number of significant areas. Mistreatment and physical abuse of detainees continued to be rampant. On March 22, Ivane Kolbaya fell to his death from a fifth-floor window of the Tbilisi Central Police Department during questioning by police officials. He was the fifth person in the past four years to die by falling from a window under suspicion circumstances while in police custody. An investigation in May reportedly confirmed initial ministry findings that all five had died as a result of suicide.

In a striking setback to reform, the parliament voted in May and July to repeal reforms in the criminal procedure code that had been slated to go into effect in mid-May. The amendments replaced nearly half of the new code, which would have ensured detainees access to the courts prior to trial to redress abuses by the procuracy and security forces during criminal investigations. The government's move to restrict access to the courts was dismaying given its public support for a high profile reform of the judiciary. The repeal of the reforms came just one month after Georgia gained admission to Council of Europe on April 27.

On May 29, Guldani police violently broke up a prayer meeting of Assembly of God adherents, threatening and beating several participants. The group's pastor and other adherents reported that throughout June, Ministry of Internal Affairs officials mounted a campaign of harassment and threats against them. The group filed a civil suit against Guldani police officials in August, alleging that they had illegally dispersed the meeting, but a trial court ruled that the police had acted properly. The judge stated in his decision that the meeting participants had been overly loud, but refused to view a video tape made of the incident, claiming that he was unwilling to wait for electricity to be restored to the court room after a temporary power outage.

In June, a political party filed a suit requesting the government revoke the registration of the Jehovah's Witness' organization on the grounds that it was "anti-state" and its teachings contrary to the Georgian Orthodox Church. The judge denied a motion filed by the Jehovah's Witnesses that the suit was spurious and that political parties do not have legal standing in Georgia to file such suits. As of this writing, the Jehovah's Witnesses had appealed the decision to the Supreme Court. A lawyer representing the Jehovah's Witnesses stated that the suit was a political stunt to gain publicity in the run up to the election. The suit was brought by Georgia Over All, a nationalist political party led by Guram Sharadze, a member of parliament.

Hope that a transfer of detention facilities from the Ministry of Internal Affairs to the Ministry of Justice would result in an improvement of poor conditions in the facilities were quashed in July when legislation was adopted to effect the transfer. The facilities will continue to be predominately staffed by Ministry of Internal Affairs personnel. Moreover, the ministry demanded that it be allowed to conduct "operative investigative measures" or investigations in the penitentiary system to gather evidence for trial.

The abusive nature of such measures was illustrated by the case of Giga Shukashvili. In 1997, police at the Guldani District police station severely beat Shukashvili to coerce him into signing false testimony regarding a theft. He was later taken to the Tbilisi City Main Police Department, where, he reported, he was placed in a room with six, and at times more, inmates who were allegedly police informers, who brutally beat him intermittently over a period of about eighteen days to force him to sign further testimony. In July 1999, more than a year and a half after the incident, the procuracy claimed that it was continuing to investigate. After being released following his trial, Mr. Shukashvili's family reported in May that he had been detained again briefly in order to intimidate him to withdraw his complaint against the police and that he was subject to harassment by visitors he identified as connected with the police officers who abused him.

Defending Human Rights

The Lawyer's Collegium, which formerly was subordinated to the Ministry of Justice but whose status is currently unknown, filed suit against the Tbilisi municipality in early August in an attempt to halt an innovative project supported by a number of nongovernmental organizations. The project would station lawyers - employees of the municipality chosen through competitive examination - in Tbilisi-area police stations to advise detainees of their rights on a pro bono basis. In October, a court ruled that the Collegium lacked the legal status to bring such a suit. In April, another project by nongovernmental organizations to monitor conditions in pre-trial detention in Tbilisi and provide free legal service failed after Ministry of Internal Affairs staff denied access to monitors. Several journalists and members of nongovernmental organizations, including the Liberty Institute, suffered harassment and threats from individuals apparently linked to the Ministry of Internal Affairs officials in an attempt to block the monitoring project.

The Role of the International Community

United Nations

On July 31, the U.N. Security Council extended the mandate of the ninety-eight member U.N. observer mission in the breakaway region of Abkhazia. The Security Council described the situation in the conflict zone as volatile and unanimously adopted a resolution noting a lack of progress in reaching a political solution to the conflict. The resolution demands that Georgia and Abkhazia deepen their commitment to the U.N.-led peace process and display the political will to find a solution.

The council reiterated the right of all refugees and displaced persons affected by the conflict to return to their homes, and condemned the ongoing activities by armed groups which it stated endanger the civilian population and impede the work of humanitarian organizations. The U.N., in conjunction with the OSCE, maintained a human rights office in Sukhumi that engaged in support for capacity building of nongovernmental organizations.

Organization for Security and Cooperation in Europe (OSCE)

The OSCE maintained a human rights office in Tbilisi that actively raised a wide range of issues with government officials, including legislative reform, visited detention facilities, monitored significant trials, and provided free legal consultations.

Council of Europe

Georgia gained full membership in the Council of Europe in April and ratified the European Convention on Human Rights in May. The repeal of legal reforms, continued police abuse, and the failure to ensure a climate of religious tolerance immediately after accession was highly dismaying.

European Union

The European Union (E.U.) actively raised human rights issues with government officials throughout the year. The E.U. earmarked funding for judicial reform activities and targeted assistance to nongovernmental organizations in regions outside of Tbilisi, a welcome move to develop civil society and to increase ties between regional and Tbilisi-based nongovernmental organizations.

United States

The United States (U.S.) cultivated closer ties with Georgia, as part of its efforts to support the development of an East-West energy corridor from the Caspian Sea region. As part of the effort, U.S. President Bill Clinton met with President Shevardnadze in September. The U.S. and its allies continued to engage in training Georgian security forces, including, but not limited to, the army and Border Guards. This activity is highly alarming given the Georgian government's repeal of reforms in May intended to strengthen the court system's ability to serve as check on abuses by the security forces. The U.S. State Department's Country Reports on Human Rights Practices for 1998 correctly noted that Georgian civilian authorities maintain inadequate control of the law enforcement and security forces.

TOP OF PAGE